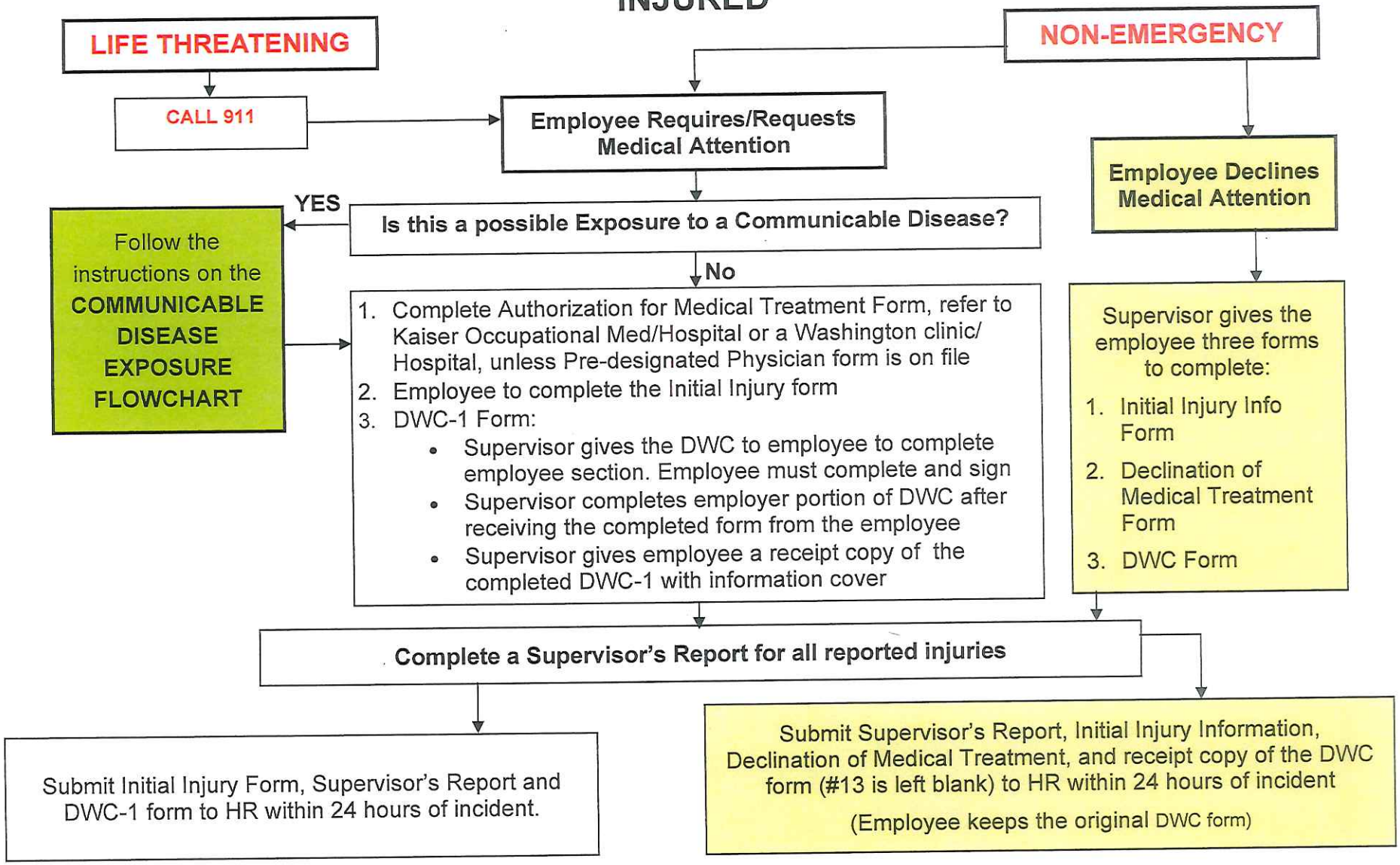
What to do when an **EMPLOYEE IS INJURED**



After an employee receives medical treatment, a **work status report** will be issued by the physician to advise the employee's ability to return to work. **Employees must give any work status reports to their department as the first point of contact** while off from work from an injury. A copy is to be sent to HR. An employee placed on modified duty or medical leave **may not return to full duty until a Doctor's Release is received by their department.**

Additional forms available in the F:\Shared\CITYWIDE\HR\Workers' Comp folder.

Revised 07/09/2014

State of California
Department of Industrial Relations
DIVISION OF WORKERS' COMPENSATION

Estado de California
Departamento de Relaciones Industriales
DIVISION DE COMPENSACIÓN AL TRABAJADOR

WORKERS' COMPENSATION CLAIM FORM (DWC 1)

PETITION DEL EMPLEADO PARA DE COMPENSACIÓN DEL TRABAJADOR (DWC 1)

Employee: Complete the **"Employee"** section and give the form to your employer. Keep a copy and mark it **"Employee's Temporary Receipt"** until you receive the signed and dated copy from your employer. You may call the Division of Workers' Compensation and hear recorded information at **(800) 736-7401**. An explanation of workers' compensation benefits is included as the cover sheet of this form.

You should also have received a pamphlet from your employer describing workers' compensation benefits and the procedures to obtain them.

Any person who makes or causes to be made any knowingly false or fraudulent material statement or material representation for the purpose of obtaining or denying workers' compensation benefits or payments is guilty of a felony.

Empleado: *Complete la sección* ***"Empleado"*** *y entregue la forma a su empleador. Quédese con la copia designada* ***"Recibo Temporal del Empleado"*** *hasta que Ud. reciba la copia firmada y fechada de su empleador. Ud. puede llamar a la Division de Compensación al Trabajador al* ***(800) 736-7401*** *para oir información gravada. En la hoja cubierta de esta forma esta la explicatión de los beneficios de compensación al trabjador.*

Ud. también debería haber recibido de su empleador un folleto describiendo los benficios de compensación al trabajador lesionado y los procedimientos para obtenerlos.

Toda aquella persona que a propósito haga o cause que se produzca cualquier declaración o representación material falsa o fraudulenta con el fin de obtener o negar beneficios o pagos de compensación a trabajadores lesionados es culpable de un crimen mayor "felonia".

Employee—complete this section and see note above ***Empleado—complete esta sección y note la notación arriba.***

1. Name. *Nombre.* _____ Today's Date. *Fecha de Hoy.* _____
2. Home Address. *Dirección Residencial.* _____
3. City. *Ciudad.* _____ State. *Estado.* _____ Zip. *Código Postal.* _____
4. Date of Injury. *Fecha de la lesión (accidente).* _____ Time of Injury. *Hora en que ocurrió.* _____ a.m. _____ p.m.
5. Address and description of where injury happened. *Dirección/lugar dónde occurió el accidente.* _____
6. Describe injury and part of body affected. *Describa la lesión y parte del cuerpo afectada.* _____
7. Social Security Number. *Número de Seguro Social del Empleado.* _____
8. Signature of employee. *Firma del empleado.* _____

Employer—complete this section and see note below. ***Empleador—complete esta sección y note la notación abajo.***

9. Name of employer. *Nombre del empleador.* City of Newark
10. Address. *Dirección.* 37101 Newark Blvd, Newark, CA 94560
11. Date employer first knew of injury. *Fecha en que el empleador supo por primera vez de la lesión o accidente.* _____
12. Date claim form was provided to employee. *Fecha en que se le entregó al empleado la petición.* _____
13. Date employer received claim form. *Fecha en que el empleado devolvió la petición al empleador.* _____
14. Name and address of insurance carrier or adjusting agency. *Nombre y dirección de la compañía de seguros o agencia adminstradora de seguros.* JT2, 231 Market Place, #381, San Ramon, CA 94583-4743
15. Insurance Policy Number. *El número de la póliza de Seguro.* _____
16. Signature of employer representative. *Firma del representante del empleador.* _____
17. Title. *Título.* _____ 18. Telephone. *Teléfono.* _____

Employer: You are required to date this form and provide copies to your insurer or claims administrator and to the employee, dependent or representative who filed the claim within **one working day** of receipt of the form from the employee.

SIGNING THIS FORM IS NOT AN ADMISSION OF LIABILITY

Empleador: *Se requiere que Ud. feche esta forma y que provéa copias a su compañía de seguros, administrador de reclamos, o dependiente/representante de reclamos y al empleado que hayan presentado esta petición dentro del plazo de* ***un día hábil*** *desde el momento de haber sido recibida la forma del empleado.*

EL FIRMAR ESTA FORMA NO SIGNIFICA ADMISION DE RESPONSABILIDAD

☐ Employer copy/*Copia del Empleador* ☐ Employee copy/ *Copia del Empleado* ☐ Claims Administrator/*Administrador de Reclamos* ☐ Temporary Receipt/*Recibo del Empleado*

7/1/04 Rev.

Workers' Compensation Claim Form (DWC 1) & Notice of Potential Eligibility

Formulario de Reclamo de Compensación para Trabajadores (DWC 1) y Notificación de Posible Elegibilidad

If you are injured or become ill, either physically or mentally, because of your job, including injuries resulting from a workplace crime, you may be entitled to workers' compensation benefits. Attached is the form for filing a workers' compensation claim with your employer. **You should read all of the information below.** Keep this sheet and all other papers for your records. You may be eligible for some or all of the benefits listed depending on the nature of your claim. If required you will be notified by the claims administrator, who is responsible for handling your claim, about your eligibility for benefits.

To file a claim, complete the "Employee" section of the form, keep one copy and give the rest to your employer. Your employer will then complete the "Employer" section, give you a dated copy, keep one copy and send one to the claims administrator. Benefits can't start until the claims administrator knows of the injury, so complete the form as soon as possible.

Medical Care: Your claims administrator will pay all reasonable and necessary medical care for your work injury or illness. Medical benefits may include treatment by a doctor, hospital services, physical therapy, lab tests, x-rays, and medicines. Your claims administrator will pay the costs directly so you should never see a bill. For injuries occurring on or after 1/1/04, there is a limit on some medical services.

The Primary Treating Physician (PTP) is the doctor with the overall responsibility for treatment of your injury or illness. Generally your employer selects the PTP you will see for the first 30 days, however, in specified conditions, you may be treated by your predesignated doctor. If a doctor says you still need treatment after 30 days, you may be able to switch to the doctor of your choice. Special rules apply if your employer offers a Health Care Organization (HCO) or after 1/1/05, has a medical provider network. Contact your employer for more information. If your employer has not put up a poster describing your rights to workers' compensation, you may choose your own doctor immediately.

Within one working day after an employee files a claim form, the employer shall authorize the provision of all treatment, consistent with the applicable treating guidelines, for the alleged injury and shall continue to provide treatment until the date that liability for the claim is accepted or rejected. Until the date the claim is accepted or rejected, liability for medical treatment shall be limited to ten thousand dollars ($10,000).

Disclosure of Medical Records: After you make a claim for workers' compensation benefits, your medical records will not have the same privacy that you usually expect. If you don't agree to voluntarily release medical records, a workers' compensation judge may decide what records will be released. If you request privacy, the judge may "seal" (keep private) certain medical records.

Payment for Temporary Disability (Lost Wages): If you can't work while you are recovering from a job injury or illness, you will receive temporary disability payments. These payments may change or stop when your doctor says you are able to return to work. These benefits are tax-free. Temporary disability payments are two-thirds of your average weekly pay, within minimums and maximums set by state law. Payments are not made for the first three days you are off the job unless you are hospitalized overnight or cannot work for more than 14 days.

Si Ud. se lesiona o se enferma, ya sea física o mentalmente, debido a su trabajo, incluyendo lesiones que resulten de un crimen en el lugar de trabajo, es posible que Ud. tenga derecho a beneficios de compensación para trabajadores. Se adjunta el formulario para presentar un reclamo de compensación para trabajadores con su empleador. **Ud. debe leer toda la información a continuación.** Guarde esta hoja y todos los demás documentos para sus archivos. Es posible que usted reúna los requisitos para todos los beneficios, o parte de éstos, que se enumeran, dependiendo de la índole de su reclamo. Si se requiere, el/la administrador(a) de reclamos, quien es responsable del manejo de su reclamo, le notificará a usted, lo referente a su elegibilidad para beneficios.

Para presentar un reclamo, complete la sección del formulario designada para el "Empleado", guarde una copia, y déle el resto a su empleador. Entonces, su empleador completará la sección designada para el "Empleador", le dará a Ud. una copia fechada, guardará una copia, y enviará una al/a la administrador(a) de reclamos. Los beneficios no pueden comenzar hasta, que el/la administrador(a) de reclamos se entere de la lesión, así que complete el formulario lo antes posible.

Atención Médica: Su administrador(a) de reclamos pagará toda la atención médica razonable y necesaria, para su lesión o enfermedad relacionada con el trabajo. Es posible que los beneficios médicos incluyan el tratamiento por parte de un médico, los servicios de hospital, la terapia física, los análisis de laboratorio y las medicinas. Su administrador(a) de reclamos pagará directamente los costos, de manera que usted nunca verá un cobro. Para lesiones que ocurren en o después de 1/1/04, hay un límite de visitas para ciertos servicios médicos.

El Médico Primario que le Atiende-*Primary Treating Physician PTP* es el médico con toda la responsabilidad para dar el tratamiento para su lesión o enfermedad. Generalmente, su empleador selecciona al *PTP* que Ud. verá durante los primeros 30 días. Sin embargo, en condiciones específicas, es posible que usted pueda ser tratado por su médico pre-designado. Si el doctor dice que usted aún necesita tratamiento después de 30 días, es posible que Ud. pueda cambiar al médico de su preferencia. Hay reglas especiales que son aplicables cuando su empleador ofrece una Organización del Cuidado Médico (HCO) o depués de 1/1/05 tiene un Sistema de Proveedores de Atención Médica. Hable con su empleador para más información. Si su empleador no ha colocado un poster describiendo sus derechos para la compensación para trabajadores, Ud. puede seleccionar a su propio médico inmediatamente.

El empleador autorizará todo tratamiento médico consistente con las directivas de tratamiento applicables a la lesión o enfermedad, durante el primer día laboral después que el empleado efectúa un reclamo para beneficios de compensación, y continuará proveyendo este tratamiento hasta la fecha en que el reclamo sea aceptado o rechazado. Hasta la fecha en que el reclamo sea aceptado o rechazado, el tratamiento médico será limitado a diez mil dólares ($10,000).

Divulgación de Expedientes Médicos: Después de que Ud. presente un reclamo para beneficios de compensación para los trabajadores, sus expedientes médicos no tendrán la misma privacidad que usted normalmente espera. Si Ud. no está de acuerdo en divulgar voluntariamente los expedientes médicos, un(a) juez de compensación para trabajadores posiblemente decida qué expedientes se revelarán. Si Ud. solicita privacidad, es posible que el/la juez "selle" (mantenga privados) ciertos expedientes médicos.

Pago por Incapacidad Temporal (Sueldos Perdidos): Si Ud. no puede trabajar, mientras se está recuperando de una lesión o enfermedad relacionada con el trabajo, Ud. recibirá pagos por incapacidad temporal. Es posible que estos pagos cambien o paren, cuando su médico diga que Ud. está en condiciones de regresar a trabajar. Estos beneficios son libres de

CITY OF NEWARK Workers' Compensation
DECLINATION OF MEDICAL TREATMENT FORM

EMPLOYEE: Check all that apply.

☐ In my opinion, I am not in need of any medical treatment at this time.

OR

In my opinion, I have received sufficient first aid care in the form of:

☐ Application of antiseptic

☐ Treatment of first-degree burn

☐ Application of bandage

☐ Use of elastic bandage

☐ Removal of foreign bodies not embedded in eye, if only irrigation is required

☐ Removal of foreign bodies from wound, if procedure is uncomplicated, and is by tweezers or other simple techniques

☐ Use of non-prescription medicine

☐ Application of ointment to abrasion to prevent drying or cracking

☐ Brief observation of injury

☐ Other: _____

I am fully capable of performing my Usual & Customary position. At this time I decline further medical care. If I am in need of medical care related to this incident in the future, I will notify my Supervisor immediately.

Print Name: _____

Job Title: _____

Signature: _____

Date: _____

SUPERVISOR: Print, sign and date.

Print Name: _____

Title: _____

Signature: _____

Date: _____

Note: California Labor Code Section 5401(a) defines a First Aid injury as "any one-time treatment of minor scratches, cuts, burns, splinters, or other minor industrial injury" and states that any injury that "results in lost time beyond the date of injury or which results in medical treatment beyond first aid" must be filed as a claim. All of the treatments detailed above fall under the First Aid category; therefore, unless further treatment is necessary, a Workers' Compensation claim does not need to be filed.

Orig- HR

cc: Depart. Head

CITY OF NEWARK
INITIAL INJURY INFORMATION

EMPLOYEE INCIDENT/ACCIDENT REPORT

EMPLOYEE:	JOB TITLE:
HOME ADDRESS:	DEPARTMENT:
HOME TELEPHONE:	SUPERVISOR:

INJURY DATE:	TIME:	LOCATION:
DATE REPORTED:	INJURY REPORTED TO:	

NATURE OF INJURY (ie, puncture, strain, cut, fracture, burn, etc.):

BODY PART INJURED (ie., right wrist, left knee, head, lower back, etc.):

INJURY SOURCE (ie., wet floor, lawn mower, keyboard, etc.):

HOW INJURY OCCURRED (ie, struck by ..., fell from ..., exposed to ..., etc.):

EMPLOYEE'S STATEMENT OF WHAT OCCURRED:
Describe the mechanics of the injury in detail

WHO WITNESSED THE INCIDENT?

☐ The above information is true and correct to the best of my knowledge.
☐ I have received the Initial Injury Form and have completed all necessary forms.

EMPLOYEE'S SIGNATURE _____ DATE _____

Any person who makes or causes to be made any knowingly false or fraudulent material statement or material representation for the purpose of obtaining or denying workers compensation is guilty of a felony.

(California Labor Code Section 5401.7)

orig-HR

cc: Depart. Head

CITY OF NEWARK HUMAN RESOURCES
37101 Newark Boulevard, Newark, CA 94560-3796
(510) 578-4267 FAX (510) 578-4259

MEDICAL TREATMENT AUTHORIZATION FORM

Today: _____ Date of Injury: _____ Time of Injury: _____

Injured Employee/Volunteer: _____

Job Title: _____

Nature of Injury: _____

Referred to:

☐ **Kaiser Permanente**
Occupational Health Center
Fremont Medical Center
Mission Building
39400 Paseo Padre Parkway
Fremont, CA 94538
(510) 248-3015
M-F 8:30am – 5:00pm

☐ **Kaiser Permanente**
Emergency Care
Fremont Medical Center
Hospital Building
39401 Civic Center Drive
Fremont, CA 94538
(510) 248-3000
7 days/24 hours day

☐ **Kaiser Permanente**
After-Hours/Urgent Care
Fremont Medical Center
Niles East Building
39400 Paseo Padre Parkway
Fremont, CA 94538
(510) 248-3015
M-F 5:30pm – 7:30pm
Sa-Su 8:30am – 5:00pm

☐ **Washington Hospital**
Emergency Room
2000 Mowry Ave.
Fremont, CA 94538
(510) 608-6174
7 days/24 hours day

☐ **Washington Hospital**
Urgent Care Clinic
2500 Mowry Ave. #212
Fremont, CA 94538
(510) 797-7535
7 days/8:00am – 8:00pm

☐ **Pre-designated Personal Physician / Other Occ-Med**
Name:
Address:

Phone:

PDP Must be on file with Human Resources prior to injury

Supervisor's Signature: _____

For life threatening injuries, report to the nearest Emergency Room

Instructions to the Medical Service Provider:
Please fax work status to 510-578-4259 or email to HR@Newark.org.
Claims Administration & Billing: JT2, P.O. Box 8021, Pleasanton, CA 94588

MEDICAL TREATMENT / WORK STATUS REPORT

CITY OF NEWARK • 37101 Newark Blvd., Newark, CA 94560 • (510)578 -4267 • FAX (510) 578-4259 • HR@Newark.org

SUPERVISOR

PART I: MEDICAL TREATMENT AUTHORIZATION

Today's date: _____ Date of injury: _____ Time of injury: _____

Injured employee: _____ Job title: _____

Nature of injury: _____

Referred to:
- ☐ **Kaiser Permanente Occupational Health Center** Location: _____
- ☐ **Kaiser Permanente Emergency Care**
- ☐ **Kaiser Permanente After-Hours/Urgent Care**
- ☐ **Washington Hospital Emergency Room**
- ☐ **Washington Hospital Urgent Care Clinic**
- ☐ **Pre-designated Personal Physician:** _____

Supervisor's Signature: _____ Date: _____

ATTENDING PHYSICIAN

PART II: WORK STATUS REPORT

Attending Physician: Please fill out this form completely. The City of Newark has a modified/light duty program available and may be able to accommodate the employee.

Employee's Name: _____ Date of Injury: _____ Exam Date: _____ Time in: _____ Time out: _____

☐ First aid only / ☐ Industrial / ☐ Non-Industrial

Physician's name: _____ Street address: _____

Phone number: _____ City, State, Zip: _____

DIAGNOSIS / NATURE OF INJURY: _____

☐ Discharged to full work on: ___/___/___ (No restrictions)

Permanent Disability Expected: ☐ Yes ☐ No

☐ Unable to return to work for approximately ____ weeks

☐ Return to modified/light duty on: ___/___/___ (With below listed restrictions)

☐ Return visit on: ___/___/___ Time: _____

☐ Referred for physical therapy for ____ times/week for _____ week(s)

Patient Can:

a. Return to work _____hrs/day _____ days/week
b. Stand/Walk _____ maximum hours per day
c. Sit _____ maximum hours per day
d. Use hands for repetitive movement: Right ☐ Yes ☐ No Left ☐ Yes ☐ No
e. Lift _____ maximum pounds

f.	Bend	☐ None	☐ Occasionally	☐ Frequently
g.	Squat	☐ None	☐ Occasionally	☐ Frequently
h.	Twist	☐ None	☐ Occasionally	☐ Frequently
i.	Climb	☐ None	☐ Occasionally	☐ Frequently
j.	Push/Pull ____/#'s	☐ None	☐ Occasionally	☐ Frequently
k.	Reach over head	☐ None	☐ Occasionally	☐ Frequently

l. Avoid exposure to: _____
m. Restrictions in effect until: (date) ___/___/___ _____ Weeks
n. Physical therapy _____ Times/Week for ____ Weeks
o. Specialist referral to: _____

Today's treatment/Patient instructions: _____

Physician's signature: _____